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No. 97-1835

IN THE
Supreme Court of the United States
OCTOBER TERM, 1997

MARGARET BORING,
Petitioner,
v.
THE BUNCOMBE COUNTY BOARD OF EDUCATION, *et al.*,
Respondents.

On Petition for a Writ of Certiorari to the United States Court of Appeals for the Fourth Circuit

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REPLY BRIEF FOR PETITIONER

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REPLY BRIEF FOR PETITIONER

ARGUMENT

Like school districts throughout the country, respondent Buncombe County Board of Education sets the general curriculum for its schools and prescribes certain implementing curricular materials. At the same time—and again like districts throughout the country—the Board calls upon its teachers, through the exercise of their professional judgment, to select additional curricular materials.

In the case of plaintiff Margaret Boring, the Board called on Ms. Boring to select a play to be presented by her advanced drama class in a statewide competition held each year. School officials did not tell Boring what play to select; it was her responsibility to choose a play, and then to notify her principal of the selection she had made. App. 81a-82a.

The question presented by this case is whether, having called upon Boring to determine what play would be produced by her students, school officials had absolute authority to discipline her after the fact because of objections to controversial ideas expressed in the play, regardless of the reasons for the objections and despite the fact that Boring had been given no notice whatsoever that her selection of the play might subject her to discipline.

1. The question so presented is an important one—not only for teachers, but for students and all who have a stake in the public schools.

If, as the Fourth Circuit held by a 7-6 vote, teachers may be disciplined on ideological grounds for their selection of instructional materials, without notice and regardless of the reasons motivating the school officials, the result will be "a highly efficient *in terrorem* mechanism." *Keyishian v. Board of Regents,* 385 U.S. 589, 601 (1967).

Far from effectuating legitimate pedagogical decisions of school officials, this will cause teachers to "steer far wider," *id.* at 604, of anything that might be deemed controversial by any segment of the community. The result will be a stifling of that " 'free play of the spirit all teachers ought especially to cultivate and practice,' " *id.* at 601 (quoting *Wieman v. Updegraff,* 344 U.S. 183, 195 (1952) (Frankfurter, J., concurring)), and a concomitant dilution of the content of the education that public school students will receive.

Unable to mount any convincing argument that the question presented by the decision below does not warrant review by this Court, respondents seek to reduce the issue to a trivial proposition that we agree would admit only of the answer respondents propose. To that end, respondents attempt to reframe the issue in a manner that simply ignores the crucial points that divided the court below.

Seizing on language from Judge Widener's opinion that obscures the critical aspects of the Fourth Circuit's ruling, respondents assert that the case turns on whether the First Amendment gives a teacher the "right to participate in the makeup of the school curriculum." Brief in Opposition ("Opp.") i, 3, 4. But that is not what this case is about: the six dissenting members of the en banc court agreed that "school administrators must 'be permitted to have the final say in setting the appropriate curriculum so that students are not exposed to material that detracts from or impedes the school's pedagogical mission.'" App. 32a (Motz, J., dissenting from the decision en banc) (quoting panel opinion). As they quite rightly recognized, Boring's claims are entirely consistent with that proposition.

This case was decided on a motion to dismiss, and the allegations of the complaint are *not* that Boring sought to supplant the authority of school officials to determine curriculum. Rather, the complaint alleges (i) that Boring carried out her responsibility to select a play and to inform her principal of the play she selected, and then proceeded to produce the play only after the prineipal voiced no objection;[1] (ii) that Boring complied with both the letter and spirit of the school's policy regarding the use of controversial materials in the curriculum;[2] and (iii) that the school officials, "act[ing] . . . with malice toward plaintiff over the ideas expressed in the play," subsequently decided to "punish and retaliate against her for expressing controversial ideas through the production of the play," amidst unfounded accusations from some members of the community "that the play was obscene and that Boring was immoral."[3]

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[1] App. 81a-82a, ¶¶ 13-15. When one parent (of a student who was not in Boring's class) subsequently objected to the play, the play was performed in the state competition only after the principal gave his express consent. App. 83a, ¶¶ 23-24.

[2] App. 82a, ¶ 16; App. 83a, ¶ 23; App. 85a, ¶¶ 37-39.

[3] App. 85a, ¶¶ 35, 37; App. 86a, ¶ 43; App. 87a, ¶ 48. Of course, these allegations—along with all facts favorable to the plaintiff that

There is nothing "limited," Opp. 4, about the Fourth Circuit's holding that those allegations fail to state a First Amendment claim.

Every day teachers are called upon to do what Margaret Boring did in this case: to select teaching materials in circumstances where school officials and school policies have not specified what materials should be used. The Fourth Circuit's decision stands unequivocally for the proposition that, whenever a member of the community or of the school administration objects after the fact to ideas expressed in materials so selected by a teacher, the First Amendment affords the teacher no protection against being disciplined for having selected those materials—no matter what may be the reason for the objections, and regardless of whether the teacher had any notice, through school policies or otherwise, that the materials she selected might subject her to discipline.[4]

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could be proved consistent with the allegations—must be taken as true in passing on the motion to dismiss. *Hishon v. King & Spalding*, 467 U.S. 69, 73 (1984); *Conley v. Gibson*, 355 U.S. 41, 45-46 (1957).

[4] Respondents' suggestion that Boring has somehow waived her argument that she lacked reasonable notice, Opp. 12-13 n.1, is without merit. There was no waiver, nor did the Fourth Circuit suggest that there was. The premise of respondents' contention is that Boring did not "ple[a]d separately . . . an inadequate notice claim." Opp. 12-13 n.1. However, it is hornbook law, followed in every circuit, that the Federal Rules of Civil Procedure require only that a plaintiff plead the pertinent *facts* giving rise to her claims; *legal theories* need not be pleaded. *See* 5 C. Wright & A. Miller, Federal Practice & Procedure 1219 (1990) ("it [is] very plain that the theory-of-the-pleadings mentality has no place under federal practice"); *id.*, nn. 7, 12, 13, 17 (collecting cases). Here, the complaint plainly alleges facts establishing lack of notice, and the district court recognized that this was central to Boring's First Amendment claim. App. 73a.

What is more, in both courts below, Boring briefed extensively the notice aspect of her First Amendment claim. Although the Fourth Circuit noted that Boring had not appealed the dismissal

That holding has profound implications for the exchange of ideas—and the quality of education—in the nation's public schools; and it presents an important constitutional question that warrants this Court's review.

2. Nor is that all: the question presented here is one as to which there is a conflict among the circuits and state courts of last resort. *See* Pet. 9-12 (citing decisions of the First, Second, Fifth and Sixth Circuits and the highest courts of Massachusetts, Alaska, Colorado and California).

Respondents do not even attempt to deny this conflict; the Brief in Opposition is silent on the point.[5]

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of her separate *due process* claim, *see* App. 14a n.3, the court recognized that the notice issue was squarely before the court as a facet of Boring's First Amendment claim. App. 13a n.2. The court below decided the merits of that claim, including specifically the lack-of-notice component. *Id.*

Ward v. Hickey, 996 F.2d 448 (1st Cir. 1993), cited at Opp. 13 n.1, is not at all on point. The *Ward* court did not hold that the plaintiff waived her notice claim by failing to plead it as a separate legal theory; the court simply held that the plaintiff failed to request that the issue of notice be submitted *to the jury*. *See* 996 F.2d at 454-55.

[5] The Brief in Opposition cites but one lower court decision. *See* Opp. 7, quoting *Bishop v. Aronov*, 926 F.2d 1066 (11th Cir. 1991). Even that decision is inconsistent with the Fourth Circuit's analysis. Far from suggesting that a teacher's speech involving curricular matters is categorically unprotected, the Eleventh Circuit stated in *Bishop* that, in determining "to what degree a school may control classroom instruction before touching the First Amendment rights of a teachers . . ., 'we see no substitute for a case-by-case inquiry into whether the legitimate interests of the authorities are demonstrably sufficient to circumscribe a teacher's speech.'" 926 F.2d at 1073-74 (quoting *Mailloux v. Kiley*, 448 F.2d 1242, 1243 (1st Cir. 1971)). The issue in *Bishop* was whether the plaintiff professor had a First Amendment right to interject his personal religious views into the classes he taught at a public university. Even on those allegations, the *Bishop* court did not hold that the plaintiff professor had failed to state a claim. And, although the court held that the defendant university was entitled to summary

3. Contrary to respondents' contentions, this Court has never directly addressed the question presented here, but the decisions of this Court that are most closely on point suggest strongly that the Court below erred.

a. This Court has recognized that school officials are not free to act "simply because they dislike the ideas contained in [a] book[ ]"; rather, their actions must be motivated by concerns for "educational suitability." *Board of Education v. Pico,* 457 U.S. 853, 871-73 (1982) (opinion of Brennan, J.). *See* Pet. 13 and n.3 (summarizing the other opinions in *Pico*). The Court also has held that, even as to matters that "may fairly be characterized as part of the school curriculum," actions of school officials that restrict speech violate the First Amendment if they are not "reasonably related to legitimate pedagogical concerns." *Hazelwood School District v. Kuhlmeier*, 484 U.S. 260, 271, 273 (1988). And, the Court has declared that "[t]he danger of a chilling effect upon the exercise of vital First Amendment rights must be guarded against by sensitive tools which clearly inform teachers what is being proscribed." *Keyishian*, 385 U.S. at 604.

Although we have been frank to acknowledge that neither these nor other decisions of this Court settle the question presented here, *see* Pet. 12-18, they point strongly against the notion that school officials' authority on questions relating to the curriculum is so unlimited as to leave teachers without any First Amendment protection when they are disciplined, *without notice and without any legitimate reason,* for their selection of teaching materials.

b. Respondents' contention that decisions of this Court have resolved this question in their favor cannot with-

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judgment, it did so only after determining from record evidence that the university had a compelling interest in prohibiting the introduction of personal religious views into classroom instruction. *See* 926 F.2d at 1068-80, 1074-77. Furthermore, *Bishop* did not involve any issue of lack of notice.

stand analysis. Respondents endorse Judge Luttig's view that the "public concern" test of *Connick v. Myers*, 461 U.S. 138 (1983), can never be met where a public employee's speech was undertaken as part of his or her job. *See* Opp. 6. And respondents would draw the same conclusion from the discussions in *Rust v. Sullivan*, 500 U.S. 173 (1991), and *Rosenberger v. Rector & Visitors*, 515 U.S. 819 (1995), regarding the government's general authority to determine the content of speech that is made on its behalf. *See* Opp. 5, 11. However, respondents read into *Connick*, *Rust* and *Rosenberger* far more than this Court decided in those cases.

Connick did not hold that an individual's speech "as an employee" is unprotected in all circumstances: the Court's holding was confined to speech involving "matters *only of personal interest*," such as a mere "employee grievance." 461 U.S. at 147, 154 (emphasis added). This is not such a case. *See* App. 29a-32a (Motz, J., dissenting from the decision en banc).

As for *Rust* and *Rosenberger*, this Court's decision in *Pico* shows how problematic it is to suggest that the government's role as the provider of public educational programs (in *Pico*, school libraries) is one that may be exercised without regard to First Amendment interests.

In all events, this Court has not yet considered how the principles adumbrated in *Rust* and *Rosenberger* should be given proper effect in a case where the government has disciplined an employee for expressive activities that are undertaken as part of the employee's job. Respondents' contention that *Rust* and *Rosenberger* dictate the conclusion that teachers and other public employees have no First Amendment rights in this setting cannot be reconciled with the numerous decisions we have cited that are in conflict with the Fourth Circuit's holding. *See* Pet. 9-10. *See also Moore v. City of Wynnewood*, 57 F.3d 924, 933 (10th Cir. 1995) ("An employee's speech is not exempted from First Amendment protection just be-

cause it occurred on the job or as part of an employee's official functions.").[6] There simply is nothing in *Rust* or *Rosenberger* to suggest that the government's general authority to determine the content of speech it funds gives the government *carte blanche* to discipline a teacher —or, for that matter, any employee—for having engaged in speech *that the employee could not reasonably have thought was prohibited.* In fact, *Rust* suggests the opposite. *See Rust,* 500 U.S. at 200 (discussing *Keyishian*).

The uncertainties that attend the application of *Connick, Rust* and *Rosenberger* in this context are a compelling reason to *grant* certiorari, not to deny it.

Respondents' reliance on other decisions of this Court is even more tenuous. Respondents make much of language that appears in *Edwards v. Aguillard,* 482 U.S. 578, 584 n.6 (1987). *See* Opp. 8. But, in the passages to which respondents refer, the Court merely noted in dictum that " '[a]cademic freedom,' at least as it is commonly understood," does not give a teacher a right "to teach courses different from what is required." We fully accept that proposition, as did the six dissenters below, but it does not begin to decide this case.

Nor is respondents' position advanced by the passage from *Hazelwood* that is quoted in the Brief in Opposition

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[6] Respondents' assertion that the law is clear as to the implications of *Rust* and *Rosenberger* for public employment is also belied by the multiplicity of opinions in *Yniguez v. Arizonans for Official English,* 69 F.3d 920 (9th Cir. 1995) (*en banc*), *vacated on other grounds,* 520 U.S. 43 (1997), which grapple with one aspect of this subject. *See* 69 F.3d at 939-941 (opinion of the court); *id.* at 951-52 (Brunetti, J., concurring); *id.* at 953-54 (Reinhardt, J., concurring); *id.* at 954-58 (Fernandez, J., dissenting); *id.* at 960 (Wallace, J., dissenting); *id.* at 960-63 (Kozinski, J., dissenting). *See also Ruiz v. Hull,* 957 P.2d 984, 997-98 (Ariz. 1998) (holding that to prohibit public employees from speaking in a language other than English when performing governmental functions violates the employees' First Amendment rights).

at 9. The Court there referred to the authority of "[e]ducators . . . to assure that participants learn whatever lessons the activity is designed to teach, that readers or listeners are not exposed to material that may be inappropriate for their level of maturity, and that the views of the individual speaker are not erroneously attributed to the school." 484 U.S. at 271. What the complaint in this case alleges is that respondents did *not* act on the basis of such reasonable pedagogical interests when they disciplined Margaret Boring, but rather that they acted out of animosity toward ideas expressed in the play she selected, despite the fact that she had been given no reason to think that her selection of the play was not in conformance with school policies.

Neither *Hazelwood* nor any other decision of this Court supports the conclusion that such allegations fail to state a First Amendment claim, and the decision below so holding conflicts with the decisions of several circuits and state courts of last resort. The case therefore warrants review by this Court.

CONCLUSION

For the foregoing reasons and the reasons stated in the petition, this Court should grant the petition for certiorari.

Respectfully submitted,

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